deemed the ethnic violence in Croatia in the early 1990s not to be genocide on the grounds that there was ‘a lack of a systematic or general plan to destroy a group and to prevent births from occurring within that group’.[37] In effect, crimes of violence, even full blown war crimes, do not necessarily constitute genocide. But in the case of the Rohingyas these extra requirements are beginning to be met. As an example, for the Rohingyas, marriage is strictly regulated, and the number of children they can have is limited to two by law, which is below the rate needed for demographic replacement (that is, fewer than are necessary to ensure the population does not decline).

And it is hugely important that we call a genocide a ‘genocide’ for practical reasons as well: not just the act of genocide itself, but the fear that such an act is imminent triggers a requirement for the UN Security Council to take direct action.[38] Indeed, reports by UN officials suggest that the treatment of the Rohingyas warrants referral to the International Court.[39]

The ICJ judgement for Croatia defines genocide in terms of aiming to destroy an identified group in sufficient numbers that it no longer has a significant presence in a particular region. Thus the genocides affecting Armenians, Jews and Tutsis in the twentieth century all fit this definition about the intended scale of the killing. In addition, systematic attempts to deny a group the means to sustain itself or to prevent births are also part of genocide, and both of these tests can be applied to the Rohingyas’ case. This is why it warrants referral to the International Criminal Court.

In this respect it is worth quoting at length what the UN Rapporteur has to say about the situation in Myanmar:

> [T]he pattern of widespread and systematic human rights violations in Rakhine State may constitute crimes against humanity as defined under the Rome Statute of the International Criminal Court. He believes that extrajudicial killing, rape and other forms of sexual violence, arbitrary detention, torture and ill-treatment in detention, denial of due process and fair trial rights, and the forcible transfer and severe deprivation of liberty of populations has taken place on a large scale and has been directed against the Rohingya Muslim population in Rakhine State. He believes that the deprivation of health care is deliberately targeting the Rohingya population, and that the increasingly permanent segregation of that population is taking place. Furthermore, he believes that those human rights violations are connected to discriminatory and persecutory policies against the Rohingya Muslim population, which also include ongoing official and unofficial practices from both local and central authorities restricting rights to nationality, movement, marriage, family, health and privacy.[40]

Further reports by UN officials stress that they are denied access to the Rohingyas and that the community is facing systemic persecution and